

Court No. - 2

Case :- WRIT - C No. - 976 of 2025

Petitioner :- M/S Aditri Agro Infratech Pvt. Ltd. Thru. Its
Director Kameshwar Nath Mishra

Respondent :- State Of U.P. Thru. Secy. Energy Govt. Of U.P.
And 2 Others

Counsel for Petitioner :- Ashwani Kumar

Counsel for Respondent :- C.S.C., Hukum Singh

Hon'ble Rajan Roy,J.

Hon'ble Om Prakash Shukla,J.

1. Heard learned counsel for the petitioner and Sri Manish Johari, learned counsel appearing for electricity corporation.

2. Petitioner claims to have taken over M/s Chittpurni Engineering Works Pvt. Ltd. in pursuance to an order of National Company Law Tribunal dated 12.05.2023. After doing so, petitioner wants restoration of electricity connection at the premises situated at Khasra No.73, 74 and 74 Gram-Dhakauli, Jahangirabad Road, Nawabganj District-Barabanki. However, admittedly, there are prior electricity dues on the said premises. Petitioner's counsel relies upon an order of Hon'ble the Supreme Court dated 11.09.2023 rendered in Civil Appeal No.5556 of 2023 '**Tata Power Western Odisha Distribution Limited (TPWODL) & Anr. vs. Jagannath Sponge Private Limited Director**' to contend that they cannot claim arrears as a precondition for restoring electricity connection.

3. On the other hand, Sri Manish Johari, learned counsel appearing for electricity corporation says that at the time of resolution in the proceedings under the Insolvency and Bankruptcy Code, 2016, the petitioner should have disclosed the electricity dues and therefore, the decision relied upon by the petitioner in **Tata Power Western Odisha Distribution Limited (supra)** does not apply in this case as it is not a case where the clear slate principle applies. Further, he invited our attention to para no.4.1 (3) of the U.P. Electricity Supply Code, 2005, according to which, the dues on electricity premises have to be cleared before taking any new connection or restoring the old one. However, whatever be the reason, it would be better if the concerned opposite party which is respondent no.3 communicate its decision to the petitioner as to whether restoration of electricity connection as claimed can be granted or not. If not, the reasons therefor. Let this decision be taken

within three weeks. If the petitioner has represented before respondent no.3 then the same shall also be taken into consideration.

4. Accordingly, the petition is **disposed of**.

(Om Prakash Shukla,J.) (Rajan Roy,J.)

Order Date :- 10.2.2025

Shanu/-